

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
QUAMEL BOOKER,

Plaintiff,

-against-

THE CITY OF NEW YORK, SGT. NATIA KALANDADZE,
Shield No. 3061 (Tax. Id. No. 945217), Individually and in her
Official Capacity, DET. SAMUEL S. PEREZ, Shield No. 232
(Tax Id. No. 946107), Individually and in his Official Capacity,
and POLICE OFFICERS "JOHN DOE" #1-10, Individually
and in their Official Capacity (the name John Doe being
fictitious, as the true names are presently unknown),

Defendants.

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SUMMONS

Jury Trial Demanded

Plaintiff designates Kings
County as the place of trial.

The basis of venue is:
CPLR § 504(3)

To the above-named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
August 9, 2018

COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

TO:

ZACHARY W. CARTER, Corporation Counsel of the City of New York
Attorney for Defendant, THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

SGT. NATIA KALANDADZE, Shield No. 3061 (Tax. Id. No. 945217)
34th Precinct
4295 Broadway
New York, NY 10033

DET. SAMUEL S. PEREZ, Shield No. 232 (Tax Id. No. 946107)
Narcotics Borough Brooklyn North
1 Police Plaza, Room 1200
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
QUAMEL BOOKER,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, SGT. NATIA KALANDADZE, Shield No. 3061 (Tax. Id. No. 945217), Individually and in her Official Capacity, DET. SAMUEL S. PEREZ, Shield No. 232 (Tax Id. No. 946107), Individually and in his Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

Jury Trial Demanded

BASIS FOR VENUE:

CPLR § 504(3)

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Plaintiff QUAMEL BOOKER, by his attorneys, COHEN & FITCH LLP, complaining of the defendants, respectfully alleges as follows:

FACTS

1. Plaintiff QUAMEL BOOKER is an African American male and has been at all relevant times a resident of Queens County in the City and State of New York.

2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, the individually named defendants, SGT. NATIA KALANDADZE, Shield No. 3061 (Tax. Id. No. 945217), DET. SAMUEL S. PEREZ, Shield No. 232 (Tax Id. No. 946107), and POLICE OFFICERS “JOHN DOE” #1-10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

The Incident

8. On or about April 11, 2017, in the County of Kings, City, and State of New York, plaintiff QUAMEL BOOKER was lawfully in the vicinity of 574 Wilson Ave. Brooklyn, NY.

9. At the aforesaid time and place, plaintiff was not acting any manner to illicit suspicion or reasonable cause to believe that he had committed or was about to be committing any criminal offenses and/or violations.

10. Nonetheless, employees of the NYPD – specifically, upon information and belief, SGT. NATIA KALANDADZE, Shield No. 3061 (Tax. Id. No. 945217), DET. SAMUEL S.

PEREZ, Shield No. 232 (Tax Id. No. 946107), and POLICE OFFICERS “JOHN DOE” #1-10 – accosted him, pushed him up against a wall, and then immediately began to search his person and effects.

11. Despite the lack of probable cause to believe Mr. Booker had committed any crimes or infractions and regardless of the fact the defendant officers KALANDADZE, PEREZ, and/or POLICE OFFICERS “JOHN DOE” #1-10 did not find any contraband on plaintiff’s person, plaintiff was nonetheless placed under arrest by and his arms were handcuffed tightly behind his back.

12. At no time on April 11, 2017, did defendants KALANDADZE, PEREZ, and/or POLICE OFFICERS “JOHN DOE” #1-10, possess reasonable suspicion to stop, question, and/or frisk plaintiff.

13. At no time on April 11, 2017, did defendants KALANDADZE, PEREZ, and/or POLICE OFFICERS “JOHN DOE” #1-10, possess reasonable suspicion and/or probable cause to stop and/or search plaintiff’s vehicle.

14. At no time on April 11, 2017, did defendants KALANDADZE, PEREZ, and/or POLICE OFFICERS “JOHN DOE” #1-10, possess probable cause to arrest plaintiff.

15. At no time on April 11, 2017, did defendants KALANDADZE, PEREZ, and/or POLICE OFFICERS “JOHN DOE” #1-10, possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

16. Thereafter, said defendant officers placed Mr. Booker in police vehicle and drove him around for several hours, before transporting him to a nearby police precinct.

17. Subsequently, upon arrival at said precinct, plaintiff was subjected by defendants KALANDADZE, PEREZ, and/or POLICE OFFICERS “JOHN DOE” #1-10, to approximately

two (2) invasive strip searches, confined in a holding cell for several hours, fingerprinted, photographed, and charged with Criminal Sale of a Controlled Substance and Criminal Possession of a Controlled Substance.

18. At no time on April 11, 2017, did Mr. Booker, sell any controlled substances, possess any controlled substances, nor did he commit any crimes, violations, and/or infractions, nor did he behave unlawfully in any way, nor did the above-named defendants possess probable cause for his arrest.

19. In connection with plaintiff's arrest, defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the Kings County District Attorney's Office – namely, defendant PEREZ falsely informed prosecutors that he observed an apprehended other approach plaintiff and give plaintiff a sum of United States currency in exchange for which plaintiff did hand said other individual a quantity of heroin.

20. Thereafter, defendants KALANDADZE and PEREZ, repeatedly gave the aforementioned false and misleading information regarding the facts and circumstances of plaintiff's arrest.

21. As a result of his unlawful arrest, plaintiff QUAMEL BOOKER spent approximately thirty (30) hours in custody until his arraignment, when he was released on his own recognizances.

22. Thereafter, as a result of his unlawful arrest, plaintiff was forced to make multiple court appearances – approximately three (3) – until on or about October 27, 2017, when all charges against him were dismissed in their entirety.

23. As a result of the foregoing, plaintiff QUAMEL BOOKER sustained, inter alia, physical injuries, mental anguish, shock, fright, apprehension, embarrassment, humiliation, loss of his liberty, and deprivation of his constitutional rights.

STATE CLAIMS

24. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

25. On or about January 12, 2018 and within (90) days after the claim herein accrued, the plaintiffs duly served upon, presented to and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

26. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

27. Defendant THE CITY OF NEW YORK demanded a hearing pursuant to General Municipal Law § 50-h and said hearing was held on or about May 24, 2018.

28. This action was commenced within one (1) year and ninety (90) days after the causes of action herein accrued.

29. Plaintiffs have complied with all conditions precedent to maintaining the instant action.

30. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

**FIRST CLAIM FOR RELIEF UNDER N.Y. STATE LAW
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION**

31. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

32. Defendant THE CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

33. Defendant THE CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police/Public Safety Department including the defendants individually named above.

34. Due to the negligence of the defendants as set forth above, plaintiff suffered physical and mental injury, pain and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

**SECOND CLAIM FOR RELIEF UNDER N.Y. STATE LAW
MALICIOUS PROSECUTION**

35. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

36. On or about April 11, 2017, defendants commenced a criminal proceeding against plaintiff.

37. Defendants KALANDADZE, PEREZ, and/or POLICE OFFICERS "JOHN DOE" #1-10, lacked probable cause to commence said criminal proceeding against plaintiff.

38. Defendants KALANDADZE, PEREZ, and/or POLICE OFFICERS "JOHN DOE" #1-10, were motivated by actual malice in commencing said criminal proceeding against plaintiff.

39. From April 11, 2017 through October 27, 2017, plaintiff was forced to repeatedly make appearances in Criminal Court to defend himself against the unlawful prosecution initiated by defendants KALANDADZE, PEREZ, and/or POLICE OFFICERS "JOHN DOE" #1-10.

40. As a result of the malicious prosecution against him, plaintiff spent approximately six (6) months making court appearances.

41. On or about October 27, 2017, the criminal prosecution against plaintiff terminated in his favor and all charges against him were dismissed.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

42. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

43. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

44. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

45. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

46. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and corrections officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police

Department and the New York City Department of Corrections, all under the supervision of ranking officers of said department.

47. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF ARISING
FALSE ARREST UNDER 42 U.S.C. § 1983**

48. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

49. As a result of the aforesaid conduct by defendants KALANDADZE, PEREZ, and/or POLICE OFFICERS “JOHN DOE” #1-10, plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

50. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he as put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

**THIRD CLAIM FOR RELIEF
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL
UNDER 42 U.S.C. § 1983**

51. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

52. Defendants KALANDADZE, PEREZ, and/or POLICE OFFICERS “JOHN DOE” #1-10, created false evidence against plaintiff.

53. Defendants KALANDADZE, PEREZ, and/or POLICE OFFICERS “JOHN DOE” #1-10, forwarded false evidence and false information to prosecutors in the Kings County District Attorney’s office.

54. Defendants KALANDADZE, PEREZ, and/or POLICE OFFICERS “JOHN DOE” #1-10, misled the prosecutors by creating false evidence against plaintiff and thereafter providing false testimony throughout the criminal proceedings.

55. Specifically, defendant PEREZ falsely informed prosecutors that he observed an apprehended other approach plaintiff and give plaintiff a sum of United States currency in exchange for which plaintiff did hand said other individual a quantity of heroin.

56. In creating false evidence against plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants KALANDADZE, PEREZ, and/or POLICE OFFICERS “JOHN DOE” #1-10, violated plaintiff’s constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

57. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FOURTH CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

58. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

59. Defendants KALANDADZE, PEREZ, and/or POLICE OFFICERS “JOHN DOE” #1-10, misrepresented and falsified evidence before the Kings County District Attorney.

60. Defendants KALANDADZE, PEREZ, and/or POLICE OFFICERS “JOHN DOE” #1-10, did not make a complete and full statement of facts to the District Attorney.

61. Defendants KALANDADZE, PEREZ, and/or POLICE OFFICERS “JOHN DOE” #1-10, withheld exculpatory evidence from the District Attorney.

62. Defendants KALANDADZE, PEREZ, and/or POLICE OFFICERS “JOHN DOE” #1-10, were directly and actively involved in the initiation of criminal proceedings against plaintiff QUAMEL BOOKER.

63. Defendants KALANDADZE, PEREZ, and/or POLICE OFFICERS “JOHN DOE” #1-10, lacked probable cause to initiate criminal proceedings against plaintiff QUAMEL BOOKER.

64. Defendants KALANDADZE, PEREZ, and/or POLICE OFFICERS “JOHN DOE” #1-10, acted with malice in initiating criminal proceedings against plaintiff QUAMEL BOOKER.

65. Defendants KALANDADZE, PEREZ, and/or POLICE OFFICERS “JOHN DOE” #1-10, were directly and actively involved in the continuation of criminal proceedings against plaintiff QUAMEL BOOKER.

66. Defendants KALANDADZE, PEREZ, and/or POLICE OFFICERS “JOHN DOE” #1-10, lacked probable cause to continue criminal proceedings against plaintiff QUAMEL BOOKER.

67. Defendants KALANDADZE, PEREZ, and/or POLICE OFFICERS “JOHN DOE” #1-10, acted with malice in continuing criminal proceedings against plaintiff QUAMEL BOOKER.

68. Defendants KALANDADZE, PEREZ, and/or POLICE OFFICERS “JOHN DOE” #1-10, misrepresented and falsified evidence throughout all phases of the criminal proceedings.

69. Specifically, defendant PEREZ falsely informed prosecutors that he observed an apprehended other approach plaintiff and give plaintiff a sum of United States currency in exchange for which plaintiff did hand said other individual a quantity of heroin.

70. Notwithstanding the perjurious and fraudulent conduct of defendants KALANDADZE, PEREZ, and/or POLICE OFFICERS “JOHN DOE” #1-10, the criminal proceeding against plaintiff was dismissed in its entirety on or about October 27, 2017.

71. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FIFTH CLAIM FOR RELIEF
UNLAWFUL STRIP SEARCH UNDER 42 U.S.C. § 1983

72. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein

73. Plaintiff was invasively strip-searched twice by defendants, KALANDADZE, PEREZ, and/or POLICE OFFICERS “JOHN DOE” #1-10, without an individualized reasonable suspicion that plaintiff was concealing contraband based on the particular characteristics of the plaintiff and/or the circumstances of his arrest.

74. As a result of the aforesaid conduct by defendants KALANDADZE, PEREZ, and/or POLICE OFFICERS “JOHN DOE” #1-10, plaintiff’s persons was illegally and improperly searched without consent, a valid warrant, probable cause, and a specific articulable factual basis supporting a reasonable suspicion and/or probable cause to believe plaintiff secreted contraband, evidence, or had a weapon inside a body cavity warranting such a search, in

violation of his constitutional rights as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.

75. As a result of the foregoing, plaintiff was deprived of his Constitutional rights and has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

SIXTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

76. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

77. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

78. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- iii. fabricating evidence in connection with their prosecution in order to cover up police misconduct; and,
- iv. strip searching individuals without an individualized reasonable suspicion that they are concealing weapons, drugs, and/or contraband based on the particular characteristics of the individual and/or the circumstances of the arrest.
- v. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,
- vi. failing to take reasonable steps to control and/or discipline police officers who

lie and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

79. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiff.

80. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein.

81. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.

82. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiff's constitutional rights.

83. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.

84. The acts complained of deprived the plaintiff of his right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon him; and
- D. To receive equal protection under the law.

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at

trial;

- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
August 9, 2018

BY: _____/S_____
ILYSSA FUCHS
JOSHUA FITCH
GERALD COHEN
COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

ATTORNEY'S VERIFICATION

ILYSSA S. FUCHS, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for plaintiff QUAMEL BOOKER in the within entitled action.

That your deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof, and that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not currently residing within the county wherein deponent maintains his office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
August 9, 2018

_____/S_____
Ilyssa S. Fuchs